

Wetland, Floodplain, and Waterfront Property in Michigan

You've likely heard of the Environmental Protection Agency (EPA), but did you know that Michigan has its own environmental protection act? The Michigan Natural Resources and Environmental Protection Act has the following stated purpose: "Provide appropriate response activity to eliminate unacceptable risks to public health, safety, or welfare, or to the environment from environmental contamination at facilities within the state."

Toward this end, the act protects Michigan's dwindling wetlands-down from a high of 11.2 million acres, to what some sources say is fewer than three million acres today. Many wetland acres that remain are "stressed," under environmental pressure due to development and agriculture.

To be considered a wetland, an area must have water in sufficient quantity, frequency, and duration to support wetland vegetation or aquatic life. You're likely most familiar with wetlands that include bogs, swamps, and marshes. However, the majority of wetlands are forested. Wetlands are identified by the Michigan Department of Environmental Quality, and when an area is deemed to be a wetland, certain restrictions apply. Landowners and others may not:

- Dump fill material or otherwise displace soil or water
- Dredge or remove soil, minerals, or water
- Build on, in, or near wetlands

Landowners and others (with permission) may use the wetland for recreational, sporting, and other purposes, including swimming, fishing, boating, hiking, farming and hunting.

Floodplains

Floodplains are areas of low-lying property adjacent to a water source, such as a river. Floodplains store floodwaters, prevent erosion, and even help maintain water quality. When flooded with water, the floodplains act as natural filters, keeping excess sediment and an overabundance of nutrients from surrounding water sources, which would increase treatment costs. Floodplains provide wildlife habitats, a place for recreation and aesthetic value.

Floodplain land is subject to flooding when the water level rises in the adjacent body of water. Any building or altering of a river, stream or drain with a drainage area of two miles or more in a designated floodplain requires a permit from the DEQ under state floodplain regulations. New residential construction is prohibited in the floodway-the area of a floodplain where water flows during a flood.

Because of the risk to the environment should the floodway become compromised, it's illegal to store materials that are buoyant, flammable, or explosive, or that could cause harm to humans, animals, fish, plants and other forms of aquatic life in the floodway.

Waterfront property

The field of water law is complex and evolves over time through both governmental regulation and case law. Michigan has historically held that navigable water belongs to the public, and non-navigable water belongs to the private landowner. Navigable waters have been defined as any water which, in its natural state, is capable of and has been used for the purposes of commerce, travel, or trade by the usual modes of navigation. During Michigan's lumber days, log floating was considered an act of commerce. Any lake or stream used for floating logs, then, was considered navigable. Even today, the log floatation test is a yardstick used in Michigan to determine whether a body of water located on or adjacent to private land would be considered navigable and therefore public, or non-navigable and therefore private. However, there is a movement to include recreational use as a test for public versus private rights.